

Mukesh Kumar Mittal & 3 Others v. State of U.P. & 6 Others

High Court of Judicature at Allahabad · Division Bench · 19 August 2019 (interim order; order-sheet 13.8.2019 to 26.3.2021, writ petition pending) · WRIT - C No. - 26583 of 2019 · **Writ petition pending; not finally decided. By interim order dated 19 August 2019 the Division Bench stayed, until further orders, the operation of the disconnection notice/order dated 2 August 2019 issued by the Executive Engineer, and directed that no coercive measures be taken against the petitioners so long as they continue to pay their current electricity bills as raised. The petitioners' contention — that an occupier holding a connection on the indemnity bond prescribed by Annexure 4.2 of the U.P. Electricity Supply Code, 2005 cannot be disconnected for failure to produce a document of title — was held prima facie to have substance and to require consideration, and was left to be decided finally. After pleadings were exchanged and the matter passed through several benches, it was last listed for final disposal on 22 April 2021.**

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HEADNOTE

Order-sheet record of a pending writ petition in which occupiers of a flat, holding an electricity connection obtained on the strength of an indemnity bond furnished under Annexure 4.2 of the U.P. Electricity Supply Code, 2005, challenged a notice dated 2 August 2019 by which the Executive Engineer threatened disconnection for their failure to produce a document of title. The petitioners' case was that their possession derived from an agreement with the seventh respondent (a builder), that the flat dispute was sub judice in F.A.F.O. No. 380 of 2018, and that an occupier entitled to a connection on the prescribed indemnity bond cannot be disconnected merely for want of title. By interim order dated 19 August 2019 the Division Bench (Ramesh Sinha and Ajit Kumar, JJ.) held that this argument prima facie appeared to have substance and required consideration; it stayed, until further orders, the operation of the disconnection notice and directed that no coercive measures be taken so long as the petitioners continued to pay their current electricity bills. The petitioners relied on Sameera Khan v. U.P. Power Corporation Ltd. (2014 (6) ADJ 672). The Court did not finally decide whether the licensee may disconnect or refuse an occupier's Annexure-4.2 connection for failure to produce title; that question was left open and the writ, after passing through several benches, was last listed for final disposal on 22 April 2021.

FACTUAL SUMMARY

The petitioners, Mukesh Kumar Mittal and three others, are occupiers of a flat which they hold under an agreement reached with the seventh respondent, a builder with whom they are in dispute over the flat; that dispute is pending before the High Court in F.A.F.O. No. 380 of 2018 and the petitioners have also launched a criminal prosecution against the builder. Having obtained an electricity connection from the Dakshinanchal Vidyut Vitran Nigam Limited on the basis of an indemnity bond furnished by them as occupiers, the petitioners were served with an order/notice dated 2 August 2019 by the fifth respondent, the Executive Engineer, Electricity Urban Distribution Division-II, Aligarh, which they apprehended would lead to disconnection on the ground that they had not produced a document of title to the premises. They filed Writ - C No. 26583 of 2019 before the Allahabad High Court to quash that notice. On the first date, 13 August 2019, the Court granted a week's time to file a supplementary affidavit annexing the indemnity bond and restrained disconnection till the next date, the petitioners pleading that they were living in the flat with their children and that the Corporation's action was in collusion with the builder. On 19 August 2019, after hearing the parties, the Division Bench recorded that the petitioners' argument — that an occupier entitled to a connection on the indemnity bond prescribed by Annexure 4.2 of the U.P. Electricity Supply Code, 2005 cannot be objected to or disconnected for failure to produce title — prima facie appeared to have substance, and granted interim protection, relying being placed by the petitioners on Sameera Khan v. U.P. Power Corporation Limited, Lucknow (2014 (6) ADJ 672). Counter and rejoinder affidavits were exchanged over the following months; the matter passed through several benches and was, on 26 March 2021, listed for final disposal on 22 April 2021. No final decision on the merits appears on the record.

REUSABLE CONSTRUCTIONS

1. An occupier who has obtained an electricity connection on the strength of the indemnity bond prescribed by Annexure 4.2 of the U.P. Electricity Supply Code, 2005 cannot, prima facie, be visited with disconnection merely because he is unable to produce a document of title to the premises; and a pending civil dispute over the premises with a third party is not, by itself, a ground for the licensee to disconnect. **order of 19.08.2019**

2. Pending final adjudication of such a challenge, the operation of a disconnection notice may be stayed and the licensee restrained from taking any coercive measure so long as the consumer continues to pay the current electricity bills as and when raised. **order of 19.08.2019**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::Annexure 4.2

OBITER

Interim stay of a disconnection notice against an occupier holding on an Annexure 4.2 indemnity bond, conditioned on payment of current bills

QUESTION

Pending decision on an occupier's challenge to a threatened disconnection, on what terms should the disconnection notice be stayed?

HOLDING

By interim order the Division Bench stayed, until further orders, the effect and operation of the disconnection notice/order dated 2 August 2019 and directed that no coercive measures be taken against the petitioners so long as they continue to pay the current electricity bills as raised from time to time. The relief was interlocutory; the merits were left for final hearing. **order of 19.08.2019**

QUALIFIER

Interlocutory direction on a pending writ; the substantive question is expressly left to be decided finally.

EVIDENCE “until further orders of the Court, the effect and operation of the notice/order dated 2nd August, 2019 passed by respondent no. 5 shall remain stayed” **order of 19.08.2019**

EVIDENCE “no coercive measures shall be taken against the petitioners by respondent no. 2 so long as the petitioners continue to pay regularly the electricity bills as is raised from time to time by the electricity department against the consumption” **order of 19.08.2019**

FLAG Source is an order-sheet compilation (running 13.8.2019 to 26.3.2021) without printed page numbers or numbered paragraphs; pins are order dates. Coram is the bench that passed the substantive interim order dated 19.8.2019; the matter has since travelled through later benches (most recently Manoj Misra, J. and Rohit Ranjan Agarwal, J.).

HOLDING-UNIT · UP-2005::Annexure 4.2

OBITER

Whether an occupier holding on an Annexure 4.2 indemnity bond may be disconnected for failure to produce title

QUESTION

Can an occupier who has obtained an electricity connection on the indemnity bond prescribed by Annexure 4.2 of the U.P. Electricity Supply Code, 2005 be objected to or disconnected on the ground that he has failed to produce a document of title to the premises?

HOLDING

The Division Bench recorded, prima facie, that even where an occupier is entitled to a connection on the basis of the indemnity bond prescribed in Annexure 4.2 of the Supply Code, 2005, the electricity department cannot raise objection or direct disconnection on the ground that the occupier has failed to produce a document of title; the argument was found to have substance and to require consideration, and interim protection was granted. The question was not finally decided. **order of 19.08.2019**

QUALIFIER

Prima facie view only, expressed while granting interim relief; not a final adjudication.

EVIDENCE “even if an occupier is entitled to have electricity connection on the basis of indemnity bond as prescribed in annexure- 4.2 of the U.P. Electricity Supply Code, 2005, the electricity department cannot raise objection and cannot direct for disconnection of the electricity on the ground that the petitioner has failed to produce any document of title in respect of the premises in question” **order of 19.08.2019**

EVIDENCE “arguments so advanced by learned counsel for the petitioners prima facie appear to have substance and the matter requires consideration” **order of 19.08.2019**

FLAG Order-sheet source; pins are order dates.

clause-4.4-occupant-connection-on-indemnity-bond The petitioners, occupiers holding a connection on the indemnity bond prescribed by Annexure 4.2 (r/w Clause 4.4), contended that they could not be disconnected for failing to produce title; the Division Bench found the contention prima facie to have substance and granted interim protection. Lead authorities: *Sameera Khan v. U.P. Power Corporation Ltd., Lucknow*. [order of 19.08.2019](#)

disconnection-not-for-landlord-tenant-dispute The threatened disconnection was traceable not to any electricity default but to the petitioners' private dispute with the seventh respondent (a builder) over the flat, pending in F.A.F.O. No. 380 of 2018; the interim order restrained disconnection premised on that dispute. [order of 19.08.2019](#)

interim-protection-preserving-pre-existing-uninterrupted-supply The petitioners' existing connection was preserved by staying the operation of the disconnection notice and barring coercive action so long as current electricity bills are paid, pending final hearing. [order of 19.08.2019](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LICENSEE MAY DISCONNECT, OR REFUSE TO CONTINUE, AN ELECTRICITY CONNECTION OBTAINED BY AN OCCUPIER ON THE INDEMNITY BOND PRESCRIBED UNDER ANNEXURE 4.2 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 ON THE GROUND THAT THE OCCUPIER HAS NOT PRODUCED A DOCUMENT OF TITLE TO THE PREMISES

Recorded on 19 August 2019 as prima facie having substance and requiring consideration, but expressly left for final decision; interim stay granted, pleadings exchanged and the matter listed for final disposal on 22 April 2021. Compare the spine authority holding that disputed title is no ground to refuse a connection where an Annexure 4.2 indemnity bond is furnished. [\[SCJ-334\]](#) [order of 19.08.2019](#)

RELATED CASES — SEE ALSO

SCJ-334 — Directly on point: holds that disputed title of the premises is no ground to refuse an electricity connection, the licensee's remedy being to take an indemnity bond under Annexure 4.2 even from a non-owner — the very proposition found here to be prima facie sound.

SCJ-2047 — A co-tenure holder whose connection was refused because a partition suit was pending was held not to be a trespasser and his connection ordered to be energized — a pending civil dispute over the premises is not a ground to withhold supply, as contended here.

SCJ-813 — Connection directed to be released on the applicant furnishing the indemnity bond in terms of Annexure 4.2 — the occupier's bond-based route to supply relied on here.

SCJ-1478 — Claimant to a share in premises with a pending civil suit was relegated to the Executive Engineer under Annexure 4.2 for a connection — the same intersection of a title dispute and the Annexure 4.2 indemnity-bond route.

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Sameera Khan v. U.P. Power Corporation Limited, Lucknow & others</i> 2014 (6) ADJ 672 High Court of Judicature at Allahabad (Lucknow Bench)	An occupier is entitled to an electricity connection on furnishing the indemnity bond prescribed by Annexure 4.2 of the U.P. Electricity Supply Code, 2005, and the department cannot object or direct disconnection on the ground that the applicant has not produced a document of title to the premises.	Relied on by the petitioners; the Division Bench recorded that the argument built upon it prima facie appeared to have substance and required consideration, and granted interim protection without finally deciding the point. order of 19.08.2019	Petitioner	Relied on

SCJ-2202 · Mukesh Kumar Mittal & 3 Others v. State of U.P. & 6 Others · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.